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No. 9 - Enrique Alejandro Luevano Ibarra, et al. v. Rudolph & Sletten Inc., et al.

Defendants Rudolph & Sletten Inc. and Minegar Contracting Inc.'s Motion for Leave to Conduct Neuropsychological Exam of Plaintiff Enrique Alejandro Luevano Ibarra

Defendants Rudolph & Sletten Inc. and Minegar Contracting Inc. (collectively "Defendants") move for leave to conduct a neuropsychological examination of Plaintiff Enrique Alejandro Luevano Ibarra.

Good Cause for Mental Examination

A defendant who seeks to conduct a mental examination of plaintiff must file a motion and "obtain leave of court." (Code Civ. Proc., § 2032.310(a).) Such a motion must "specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination." (Code Civ. Proc., § 2032.310(b).) The court may grant such a motion "only for good cause shown." (Code Civ. Proc., § 2032.320(a).)

Here, Plaintiff agrees that there is good cause for a mental examination. Plaintiff opposes the motion only based on the requested conditions of the exam.

Disclosure of Raw Data

In their motion, Defendants request that the Court allow the raw testing data and testing materials used to evaluate Plaintiff to be distributed between the parties' experts only, and not counsel.

"If a party submits to a . . . mental examination . . . that party has the option of making a written demand that the party at whose instance the examination was made deliver . . . to the demanding party . . . [a] copy of a detailed written report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner." (Code Civ. Proc., § 2032.610(a)(1).) "If the option under [Code Civ. Proc. § 2032.610(a)] is exercised, a copy of the requested reports shall be delivered within 30 days after service of the demand, or within 15 days of trial, whichever is earlier." (Code Civ. Proc., § 2032.610(b).)

"There is no statutory authority . . . precluding a trial court from ordering the disclosure of test materials or test data when ordering a mental examination." (Randy's Trucking Inc. v. Super. Ct. (2023) 91 Cal.App.5th 818, 834.) A plaintiff has a "right

to take discovery and cross-examine defendants' expert witnesses, which includes being able to examine the expert on the matter upon which the expert's opinion is based and the reasons for that opinion." (Id. at p. 838.) Without access to raw data, a plaintiff "cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion." (Ibid.)

The Court finds that a discussion of Randy's Trucking, supra, 91 Cal.App.5th 818 is appropriate. In Randy's Trucking, plaintiff sustained injuries in a vehicle accident and during discovery claimed that she suffered a severe traumatic brain injury. The defendants moved for an order compelling plaintiff to undergo a mental examination by their neuropsychologist. The defendants moved for such an order after plaintiff refused to proceed with the examination unless their attorney received all raw data and test information from the mental examination. The trial court granted defendants' motion to compel; however, the trial court denied defendants' request to limit the transmission of raw data and test materials to a licensed psychologist or neuropsychologist. Instead, the trial court ordered defendants' neuropsychologist to transfer the raw data and an audio recording of the examination to plaintiff's attorney pursuant to a protective order.

Thereafter, defendants sought a petition for writ of mandate to direct the trial court to modify its order to require the transmission of the raw data and audio recording to plaintiff's retained psychologist or neuropsychologist as opposed to plaintiff's attorney. The defendants asserted that: (1) the trial court erred in ordering transmission of raw data and audio recordings to plaintiff's counsel because those items are not among the materials set forth in Code Civ. Proc. § 2032.610(a); and (2) psychologist confidentiality prohibited disclosure of test materials. In rejecting defendants' contentions, the Randy's Trucking court held that there is no statutory authority prohibiting a trial court from ordering the disclosure of test materials or test data when ordering a mental examination. (Randy's Trucking, Inc., supra, 91 Cal.App.5th 818, 834.) Moreover, the court opined that given the trial court's broad discretion in discovery matters, the trial court retained jurisdiction to order the production of materials and, in doing so, the trial court did not abuse its discretion. (Id. at p. 837.)

Here, Defendants argue that the disclosure of raw data to Plaintiff's counsel would violate ethical obligations and potentially endanger test security. Dr. Roger Light, Defendants' retained neuropsychologist, provides a declaration in support of the Motion. Dr. Light asserts that he has concerns about sharing raw test data with attorneys. (See Light Decl., ¶ 17.) Dr. Light states that the California Board of Psychology has imposed restrictions on the distribution of test materials. (Id., ¶ 22.) He contends that the imposition of a protective order would not suffice to guard the sensitive information. (Id., ¶ 34.) Dr. Light states he is willing to provide the raw testing data directly to Plaintiff's retained expert, Dr. Delis. (Id., ¶ 15.)

Here, exercising its discretion, the Court finds that it is appropriate to allow disclosure of the raw test data between the parties' experts. The data would in the ordinary course of the case be produced to counsel at some point, so both sides' experts can perform their analysis and the attorneys can cross-examine the experts. The facts in this action are akin to those in Randy's Trucking. Dr. Light has requested that raw test data and materials not be disclosed to Plaintiff's counsel due to ethical concerns and to protect the integrity of the testing process, arguments rejected in Randy's Trucking. Without access to raw test data and materials, the Court finds that Plaintiff would not be able to scrutinize the data collected by Dr. Light and prepare for cross examination if this case goes to trial. While Defendants argue that Plaintiff's counsel is not equipped to interpret the raw data, such argument was rejected in Randy's Trucking, where the court stated that such interpretation is "not necessarily . . . required . . . to use the materials for purposes of cross-examination, since disclosure of [such] materials may help to protect against abuse and disputes over what transpired during the examination." (Randy's Trucking, supra, 91 Cal.App.5th 818, 838.)

While the Court finds that the raw test data from Plaintiff's neuropsychological examination should be exchanged between the experts, the Court orders that the data will be disclosed to each side's counsel by the expert retained by that counsel. The Court finds that such disclosure is warranted pursuant to a protective order. (Randy's Trucking, supra, 91 Cal.App.5th 818, 828.)

Because the parties have not requested or adopted a protective order for this case, the Court orders the following protective order—identical to that which was issued in Randy's Trucking, supra, 91 Cal.App.5th 818, 828—be entered in this matter:

Plaintiff's counsel, defense counsel and all experts, consultants and employees of the respective firms shall maintain the security of all raw data, test materials, and other medically private information obtained during the examination. However,

such raw data, test materials and other medically private information may be disclosed to plaintiff's counsel, defense counsel and all experts, consultants and employees of the respective firms for use in this case. Such materials and data may also be shown to the trier of fact at the time of trial, or such other time as may be necessary for the adjudication of the above-captioned matter. These materials may be used for no other purpose, may not be disseminated to any other party and the parties shall take reasonable steps to maintain the confidentiality of the above-identified materials. [The parties are also ordered to] destroy the above-identified materials at the cessation of this case, in accordance with the California Rules of Professional Conduct.

Counsel may seek to add or modify the above terms by stipulation or motion; however, pending a protective order from the parties concerning disclosure, the above protective order shall apply.

Audio Recording

Defendants also contend that Dr. Light's ethical obligations preclude him from providing the audio recording of the exam to Plaintiff's counsel.

Where a mental examination occurs, "[t]he examiner and examinee shall have the right to record a mental examination on audio tape." (Golfland Entertainment Centers, Inc. v. Superior Court (2003) 108 Cal.App.4th 739, 750.) The main purposes of audiotaping a mental examination "are to ensure that the examiner does not overstep the bounds set by the court for the mental examination, that the context of the responses can be judged for purposes of trial, that the examinee's interests are protected (especially since the examinee's counsel ordinarily will not be present), and that any evidence of abuse can be presented to the court." (Ibid.) Code Civ. Proc. § 2032.530(a) grants the examinee the right to record a mental examination by audio technology and implies that the examinee can retain a copy of the recording. (Randy's Trucking, Inc, supra, 91 Cal.App.5th at p. 837.) A court has discretion to order the production of an audio recording from a mental examination. (Ibid.)

The Court finds that if an audio recording of the examination is made, disclosure of the audio recording to Plaintiff's expert is appropriate. Disclosure of the audio recording of the examination can ensure that Dr. Light does not overstep the bounds of the examination and can protect Plaintiff's interests. Dr. Light can be present to ensure the audio recording is transmitted directly to Plaintiff's expert. The Court orders that each party's expert will share the audio recording, like the raw data, with the retaining attorney. As such, the recording would be covered by the same protective order. All exchanges and disclosure obligations apply mutually to the experts and counsel on each side of this case.

Disposition

Defendants Rudolph & Sletten Inc. and Minegar Contracting Inc.'s motion for leave to conduct a neuropsychological examination of Plaintiff Enrique Alejandro Luevano Ibarra is granted in part, with the above discussed conditions.